

**BEFORE THE
FEDERAL MARITIME COMMISSION**

CertiFit, Inc.,

Complainant,

DOCKET NO. 23-03

**Complainant CertiFit, Inc.'s
Revised Motion for Confidential
Treatment**

v.

Evergreen Shipping Agency (America) Corp.,
as agent for Evergreen Line, Evergreen Group
d/b/a Evergreen Line,

Respondent.

Complainant CertiFit, Inc. (“CertiFit”), by and through its counsel of record, Barry G. Scholl and Sean B. Leonard of the firm Christensen & Jensen, P.C., and pursuant to the Commission’s December 8, 2023 Order (“Order”), hereby files its Revised Motion for Confidential Treatment of its appendices.

Pursuant to 46 C.F.R. § 502.141(j) “...[t]he Commission or presiding officer may, for good cause, issue an order...(vii) [r]equiring that a trade secret or other confidential research, development, or commercial information not be disclosed or be disclosed only in a specified way.” 46 C.F.R. § 502.141(j)(viii). In accordance with this provision, the Commission’s Order, in relevant part, states that “CertiFit should properly narrow the material in the appendix for which is [sic] [it] seeks a confidential designation.” Order, pp. 2-3. Moreover, the Commission ordered CertiFit to not redact “quotations, numbers, rates, or other information already disclosed in the Brief and Proposed Findings of Fact.” *Id.* at 3. Consistent with the Order, CertiFit’s Revised

Motion for Confidential Treatment and the contemporaneously filed Confidential/Public Appendices, have been limited to the requested confidential treatment as follows:

<i>Bates Range</i>	<i>Description</i>	<i>Classification for Request</i>	<i>Basis for Confidentiality Request</i>
CX1-0001 – 0126	OEC bills of lading/invoices containing confidential supplier information (<i>i.e.</i> , “shipper”); description of items shipped along with the quantity shipped (# of cartons); business email account information; and partial disclosure of CertiFit’s banking information.	As indicated.	The highlighted portions of these documents contain sensitive and confidential information related to CertiFit’s suppliers, and a description and quantity of items shipped by these suppliers. This information is proprietary to CertiFit’s trade and export business and highly confidential as disclosure would harm CertiFit’s business and/or provide an advantage to its competitors. Additionally, payments made by CertiFit contain partial account numbers which were redacted as required by the Commission.
CX2-0128 - 0289	Laufer Group International bills of lading/invoices which contain confidential supplier information (<i>i.e.</i> , “shipper”); description of items shipped along with the quantity (# of cartons); business email information; confidential	As indicated.	The highlighted portions of these documents contain sensitive and confidential information related to CertiFit’s suppliers, and a description and quantity of items shipped by these suppliers. This information is

	breakdown of rate structure; and partial disclosure of CertiFit's banking information.		proprietary to CertiFit's trade and export business and highly confidential as disclosure would harm CertiFit's business and/or provide an advantage to its competitors. Additionally, payments made by CertiFit contain partial account numbers which were redacted as required by the Commission.
CX3-0291 - 0478	OOCL bills of lading/invoices which contain confidential supplier information (i.e., "shipper"); description of items shipped along with the quantity (# of cartons); business email information; confidential breakdown of rate structure; partial disclosure of CertiFit's banking information; and OOCL wiring account information.	As indicated.	In addition to the reasoning outlined above, which is equally applicable for this group of documents, these documents provide confidential contact information for employees of the parties, CertiFit's suppliers, along with the specific rate structure supplied to CertiFit by OOCL, which is commercial sensitive.
CX4-0490; CX5-0501	Confidential business email addresses of CertiFit employees and executives.	As indicated.	The proposed redactions remove business email addresses of CertiFit employees and executives.
CX7-0523 – 0546; 0556 – 0559; 0580 - 0588	Confidential business emails and phone numbers of CertiFit and Evergreen employees; partial disclosures of	As indicated.	The proposed redactions remove confidential contact information of the parties and CertiFit's suppliers, partial bank

	CertiFit's banking information; and spreadsheet entries containing abbreviated names of CertiFit suppliers.		account information, and references to CertiFit's suppliers (by abbreviations) which is commercially sensitive information that may disrupt CertiFit's business and exports if disclosed.
CX7-0548 – 0555	Laufer September 2020 Contract Terms and rates.	As indicated.	These redactions are necessary to conceal confidential terms between CertiFit and Evergreen that have not otherwise been disclosed in the Brief.
CX7-0560 – 0579	OEC Shipping Invoices which includes confidential supplier information (<i>i.e.</i> , "shipper"); description of items shipped and quantity (# of cartons); business email addresses; and partial disclosure of CertiFit's banking information.		The highlighted portions of these documents contain sensitive and confidential information related to CertiFit's suppliers, and a description and quantity of items shipped by these suppliers. This information is proprietary to CertiFit's trade and export business and highly confidential as disclosure would harm CertiFit's business and/or provide an advantage to its competitors. Additionally, payments made by CertiFit contain partial account numbers which were redacted as required by the Commission.

CX9-0560 - 0561	Spreadsheet entries of shipments which include the names of CertiFit's suppliers (<i>i.e.</i> , "shipper").	As indicated.	The identity of CertiFit's suppliers has been removed as it is proprietary and commercially sensitive to CertiFit's business and exports.
CX11-0564 - 0566	Spreadsheet entries of shipments which include the names of CertiFit's suppliers (<i>i.e.</i> , "shippers").	As indicated.	The identity of CertiFit's suppliers has been removed as it is proprietary and commercially sensitive to CertiFit's business and exports.
CX12-0588 – 0598; 0610 - 0644	ShipmentLink entries which include name and contact information for CertiFit suppliers.	As indicated.	The identity of CertiFit's suppliers has been removed as it is proprietary and commercially sensitive to CertiFit's business and exports.
CX12-0607 – 0609; 0646 - 0791	Email correspondence between CertiFit, its suppliers, and Evergreen with only business email addresses and other confidential contact information partially redacted.	As indicated.	These proposed redactions remove references/identification to CertiFit's suppliers, and the parties' and suppliers' contact information.
CX13-0794 – 0802; 0804 - 0815	CertiFit – Evergreen Service Contract and amendment with all provisions that were not included in the Brief redacted as confidential.	As indicated.	These redactions are necessary to conceal confidential terms between CertiFit and Evergreen that have not otherwise been disclosed in the Brief.
CX13-0816 - 0821	Spreadsheet entries outlining shipments cancelled by Evergreen with	As indicated.	Commercially sensitive information related to CertiFit's suppliers, number of containers

	CertiFit supplier identification partially redacted.		shipped or attempted to be shipped the disclosure of which would be harmful to CertiFit's business and exports.
CX13-0843 - 1048	ShipmentLink entries containing CertiFit supplier information; email correspondence between CertiFit, its suppliers, and Evergreen with only business email addresses and other confidential contact information partially redacted.	As indicated.	These proposed redactions remove references/identification to CertiFit's suppliers, and the parties' and suppliers' contact information.

The Commission should find good cause to grant CertiFit's Motion because its revised version has been narrowly tailored to only redact documents and information relating to: (i) confidential contract terms that have not been otherwise disclosed in CertiFit's Brief or Proposed Findings of Fact; (ii) identification—including contact information such as phone and email—of the parties' employees and CertiFit's suppliers; (iii) CertiFit's partial bank account information; and (iv) the description of items shipped by CertiFit and the quantity thereof. None of the above-referenced categories of information have been fully redacted and the proposed redactions are consistent with protecting the parties' ongoing business endeavors and, in CertiFit's case, protecting the highly sensitive network of suppliers and specific quantities shipped (*i.e.*, cartons vs. containers) strictly confidential.

As requested by the Commission, the Appendices submitted herewith include the exact pagination and bates numbering as filed on November 30th and December 1st and a revised title page has been included for each.

For the foregoing reasons, CertiFit respectfully requests that the materials and exhibits designated as confidential be kept confidential and not disclosed to the public at this time.

DATED this 18th day of December, 2023

CHRISTENSEN & JENSEN, P.C.

/s/ Sean B. Leonard
Barry G. Scholl
Sean B. Leonard
Attorneys for Complainant

CERTIFICATE OF SERVICE

I hereby certify that on this 18th day of December, I served the foregoing **Complainant's**
CertiFit, Inc.'s Revised Motion for Confidential Treatment upon all parties of record by
electronic mail to the following email addresses:

Federal Maritime Commission
Office of the Secretary
secretary@fmc.gov

Federal Maritime Commissions
The Honorable Linda S. Harris Crovella
judges@fmc.gov

Edward A. Keane
Garth S. Wolfson
Telephone: 212-385-1422
Email: ekeane@mahoneykeane.com
gwolfson@mahoneykeane.com

Mahoney & Keane, LLP
40 Worth Street, Suite 602
New York, New York 10013

Executed: December 18, 2023

/s/ Sean B. Leonard
Sean B. Leonard
Christensen & Jensen, P.C.